

Justification for Exception to Fair Opportunity
Brand Name FAR 16.505(a)(4)(i)

1. Agency and contracting activity.

The Department of Homeland Security (DHS), the United States Coast Guard (USCG), Command, Control, Communications, Computers, Cyber and Intelligence Service Center (C5ISC), and C5I Contracting and Procurement, Alexandria (CG-9141) located at 7323 Telegraph Road Alexandria, VA 20598-7300 prepared this justification for an exception to fair opportunity.

2. Nature and/or description of the action being approved.

The USCG intends to award a Task order (TO) under the brand name exception to fair opportunity for the annual renewal of Quantum hardware and software maintenance pursuant to FAR 16.505(a)(4)(i), restricting consideration to an item peculiar to one manufacturer. This will result in a Firm-Fixed-Price (FFP) TO amongst authorized Quantum resellers and service providers via NASA SEWP.

3. Description of Supplies/Services.

The USCG requires commercial brand name Quantum hardware and software maintenance support in order to meet and sustain security requirements on the USCG network. Through this annual maintenance, the USCG receives technical support, security patch updates, and hardware and software release updates. The annual hardware and software maintenance renewal will be utilized for a period of 12-months (4/1/2025 - 3/31/2026) with an estimated amount of [REDACTED] using FY25 funds.

Line #	Item Description	Location	Serial Number	Part Number/ ID Number	Qty	Estimated Unit Cost	Estimated Total Cost
1	Quantum Scalar i2000/i6000 Library with 1,500 Slots, No Drives; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	263104332	SSC2K-RS15-CG11	1	[REDACTED]	[REDACTED]
2	Quantum Scalar i2000/i6000 Library, Price per 100 Slots; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	263104332	SSCBB-RS01-CG11	4	[REDACTED]	[REDACTED]
3	LTO8 - Quantum Scalar i2000/i6000 and AEL6000, Tape Drive Module; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	263104332	SLBBN-RTDX-CG11	14	[REDACTED]	[REDACTED]
4	Quantum Scalar i2000/i6000 Library with 400 Slots, No Drives; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	1430A Kristina Way - Chesapeake, VA 23326	263104734	SSC2K-RS04-CG11	1	[REDACTED]	[REDACTED]
5	LTO8 - Quantum Scalar i2000/i6000 and AEL6000, Tape Drive Module; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	1430A Kristina Way - Chesapeake, VA 23326	263104734	SLBBN-RTDX-CG11	12	[REDACTED]	[REDACTED]
6	Quantum Scalar i2000/i6000/AEL6000 Encryption Key Manager Solution, per drive; Software Support Plan, Gold (7x24TS); Uplift/Renewal, annual, all zones	1430A Kristina Way - Chesapeake, VA 23326	263104734	SSC2K-REKM-GL10	12	[REDACTED]	[REDACTED]
7	Quantum Scalar i2000/i6000 Library with 1,500 Slots, No Drives; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	273100075	SSC2K-RS15-CG11	1	[REDACTED]	[REDACTED]

8	Quantum Scalar i2000/i6000 Library, Price per 100 Slots; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	273100075	SSCBB-RS01-CG11	5		
9	LTO6 - Quantum Scalar i2000/i6000 and AEL6000, Tape Drive Module; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	273100075	SLBBN-RTB6-CG11	12		
10	LTO8 - Quantum Scalar i2000/i6000 and AEL6000, Tape Drive Module; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	273100075	SLBBN-RTDX-CG11	14		
11	Quantum Scalar i2000/i6000/AEL6000 Encryption Key Manager Solution, per drive; Software Support Plan, Gold (7x24TS); Uplift/Renewal, annual, all zones	408 Coast Guard Drive - Kearneysville, WV 25430	273100075	SSC2K-REKM-GL10	26		
12	Quantum Scalar i500 23U Library, No Drives; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	1430A Kristina Way - Chesapeake, VA 23326	A0C0217215	SSC55-RS00-CG11	1		
13	LTO8 - Quantum Scalar i500 and AEL500, Tape Drive Module; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	1430A Kristina Way - Chesapeake, VA 23326	A0C0217215	SLBBM-RTDX-CG11	10		
14	Quantum Scalar i500/AEL500 Encryption Key Manager Solution per drive; Software Support Plan, Gold (7x24TS); Uplift/Renewal, annual, all zones	1430A Kristina Way - Chesapeake, VA 23326	A0C0217215	SSC5H-REKM-GL10	10		
15	Quantum Scalar i500 14U Library, No Drives; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	A0C0327229	SSC53-RS00-CG11	1		
16	LTO8 - Quantum Scalar i500 and AEL500, Tape Drive Module; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	A0C0327229	SLBBM-RTDX-CG11	4		
17	Quantum Scalar i500/AEL500 Encryption Key Manager Solution per drive; Software Support Plan, Gold (7x24TS); Uplift/Renewal, annual, all zones	408 Coast Guard Drive - Kearneysville, WV 25430	A0C0327229	SSC5H-REKM-GL10	2		
18	Quantum Scalar i500 14U Library, No Drives; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	A0C0489007	SSC53-RS00-CG11	1		
19	Quantum Non-Enterprise End-of-Life LTO-6 Tape Drive Module in Scalar i500 libraries; Support Plan, Gold (7x24x4 CRU); Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	A0C0489007	SLBBL-RTB6-CG11	4		
20	Quantum Scalar Key Manager High-Availability Appliance (single server); Support Plan, Rapid Exchange; Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	J3436AR	SSCBB-RKMA-RE11 (7-00981-01)	1		
21	Quantum Scalar Key Manager High-Availability Appliance (single server); Support Plan, Rapid Exchange; Renewal, annual, zone 1	408 Coast Guard Drive - Kearneysville, WV 25430	J3436AX	SSCBB-RKMA-RE11 (7-00981-01)	1		
22	Quantum Scalar Key Manager High-Availability Appliance (single server); Support Plan, Rapid Exchange; Renewal, annual, zone 1	1430A Kristina Way - Chesapeake, VA 23326	J3436AC	SSCBB-RKMA-RE11 (7-00981-01)	1		

23	Quantum Scalar Key Manager High-Availability Appliance (single server); Support Plan, Rapid Exchange; Renewal, annual, zone 1	1430A Kristina Way - Chesapeake, VA 23326	J3436AV	SSCBB-RKMA-RE11 (7-00981-01)	1		
TOTAL							

4. Identify the exception to fair opportunity and supporting rationale.

Justification for Brand Name Exception to Fair Opportunity -

The statutory authority permitting exception to fair opportunity is FAR 16.505(b)(2)(i)(B). “Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.” This requirement will be procuring items peculiar to one manufacturer on a brand name basis in accordance with 16.505(a)(4)(i).

Quantum hardware and software is proprietary and is currently used throughout the USCG network infrastructure. The Quantum annual hardware and software maintenance renewal must be purchased in order to keep the hardware and software up to date and receive security patches as they are released. No other brand can provide these proprietary hardware and software updates. The maintenance renewal is necessary to ensure C5ISC - Kearneysville can continue to meet the change management and configuration management mandates for all components that reside within its boundaries. Only an authorized reseller and maintenance service provider that is registered with the manufacturer will be able to provide this brand name support.

Due to the USCG’s need for proprietary Quantum requirements, the contracting strategy, which will provide the Government best value, is competing the brand-name Quantum renewal requirement amongst the authorized resellers.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer determines that the anticipated cost will be fair and reasonable based on adequate price competition between two or more responsible offerors as there are multiple authorized Quantum resellers available on NASA SEWP. The Contracting Officer will also perform a price analysis to determine that the price at the time of award represents the overall best value for the Government and is fair and reasonable.

6. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

Currently, Quantum hardware and software is proprietary and is on the USCG network. The availability of multiple vendors that can provide Quantum brand name hardware and software maintenance ensures competition, although limited to the brand name Quantum. The USCG will also continue to survey the marketplace and evaluate the USCG’s requirements to discover viable alternatives to this brand name action and seek further competition.

7. Contracting Officer’s Certification.

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Contracting Officer

Date

8. Technical/Requirements Personnel Certification.

I certify that this requirement meets the Government's minimum need and that the supporting data, which forms a basis for the justification, is accurate and complete.

[Redacted Signature]

Contracting Officer's Representative

Date

Approval:

[Redacted Signature]

Contracting Officer

Date